the first petitions were filed, R.S. Sodhi (a leading criminal lawyer who represented several TADA defendants in the Supreme Court) lamented the delay and said that he did not expect the court to decide the petitions any time soon.[16]

When the case ultimately arose for hearing in early 1994, a 'galaxy of senior lawyers',[17] including Ram Jethmalani, K.T.S. Tulsi and V.M. Tarkunde, appeared on both sides. Over sixty lawyers in total recorded appearance. TADA was subjected to two distinct lines of attack in the Supreme Court: first, that Parliament lacked the legislative authority to enact the law, and second, that many of its provisions violated fundamental rights under the Constitution. Although these were analytically separate grounds of challenge, as it turned out, success on the first ground of challenge had a significant impact on the prospects of success for the second ground.

Judgement was delivered on a spring day in March 1994. On the eve of his retirement, Justice S.R. Pandian delivered the leading opinion on behalf of three of the five judges. The other two judges – Justices K. Ramaswamy and R.M. Sahai – wrote separate opinions disagreeing with some aspects of the majority decision. The Constitution distributes legislative powers (to Parliament on the one hand and the state legislatures on the other) through three lists. Parliament has exclusive power to make laws on matters within the Union List, the state legislatures have exclusive power to make laws on matters within the State List, while both have the power to make laws on matters within the Concurrent List. On the first ground of challenge, the question before the court was whether TADA addressed the 'defence of India' (which formed part of the Union List) and was therefore within the authority of Parliament, as the central government argued, or whether it was directed towards 'public order' (which formed part of the State List) and was therefore unconstitutional as it was within the legislative authority of the states.

Confronted with doomsday scenarios of terrorism of the 1980s ('bloodbath, firing, looting and killing, [converting parts of the country into] a graveyard'),[18] Justice Pandian held unambiguously in favour of the